

George and John Saba's Requests for Production, Set Two

John Saba propounded 27 requests for production in his second set. These requests pertain to financial documents and the Irrevocable Trust.

George Saba propounded 115 requests for production in his second set. These requests include Defendant's bank account statements/any account in which she was a signatory, financial and bank documents relating to Settlor, checks to counsel, documents showing reasons for specific withdrawals, documents relating to expenses, documents relating to itemizations, inventory, documents relating to the Trust, documents relating to rental income, and other similar requests.

Defendant has not met her burden of proving that these requests are unnecessarily oppressive or constitute an undue burden.

Accordingly, the court DENIES the motion as to Plaintiffs George and John Saba's Requests for Production, Set Two

George, Jack and John Saba's Requests for Admissions, Set One

With regards to the requests for admissions, George Saba propounded a total of 221 requests; John Saba propounded a total of 170 requests; and Jack Saba propounded a total of 117 requests. (See Ex. E to Decl. Duncombe). All three Plaintiffs provided a declaration for additional admissions with their requests. In their declarations, all three Plaintiffs attested that the number of requests for admissions is warranted because the issues involved in this action are numerous and complex. (See Ex. "E": Decl. of Jack Saba, ¶ 9, Decl. of John Saba, ¶ 9, Decl. of George Saba, ¶ 9).

Plaintiffs' requests pertain to matters such as: each specific transaction that Defendant undertook during the relevant time frame; each of Defendant's actions that were alleged to amount to breach of fiduciary duty; various facts regarding Settlor; various facts regarding Defendant; various facts regarding Plaintiff's backgrounds; the relationship between Settlor and Defendant; the Settlor's decline; the actions regarding the execution of the 2015 restatement, and other more detailed requests that are related to the allegations in the complaint.

The court finds that this matter is complex, and will require a factually sensitive inquiry regarding Defendant's relationship with Settlor, Defendant's handling of Settlor's finances, a close look into the bank account(s) at issue, the interactions that unfolded when the new trust was created, etc.

However, the court also finds that each of these sets of requests could be more succinct. Furthermore, while each party is entitled to propound its own discovery, all of Plaintiffs' allegations against Defendant are the same, and there are no particular issues that are unique as to each Plaintiff. Rather, all three Plaintiffs are contending that Defendant committed fraud and engaged in other unlawful actions when she convinced the Settlor (who is the mother to all three Plaintiffs and Defendant) to alter the Trust.

		Accordingly, the court GRANTS Defendant's motion as to George, Jack and John Saba's Requests for Admissions, set one. The court limits each Plaintiff to 75 requests for admissions (a maximum of 225 requests in total). <u>Sanctions</u> The court DENIES Defendant's and Plaintiffs' requests for sanctions. (See <i>Mattco Valley Forge v. Arthur Young & Co.</i> (1990) 223 Cal.App.3d 1429, 1437 [court's discretion to deny sanctions upon mixed results].) Defendant shall give notice.
4	Nguyen v. Le	Defendant Holly Ngo's Special Motion to Strike Under CCP §425.16 is DENIED. Defendant's requests for judicial notice are GRANTED. Plaintiffs Thang Dinh Nguyen, Ph.D. and Boat People SOS, Inc.'s evidentiary objections to the Declaration of Defendant Holly Ngo are OVERRULED. Plaintiff's evidentiary objections to the Declarations of Le Xuan Khoa and Hanh Tran, which were submitted with Defendant's Reply brief, are SUSTAINED. <u>Standard for Anti-SLAPP Motion</u> Under the anti-SLAPP statute, "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1); <i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 678) "The moving party 'must establish that the challenged claim arises from activity protected by section 425.16'; if the moving party does so, 'the burden shifts' to the nonmoving party 'to demonstrate the merit of the claim by establishing a probability of success.' [Citation.]" (<i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 678; <i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.) "To succeed in opposing a special motion to strike, the nonmoving party must 'demonstrate both that the claim is legally sufficient and that there is sufficient evidence to establish a prima facie case with respect to the claim.' [Citation.] '[C]laims with the requisite minimal merit may proceed.' [Citation.] The moving party prevails by 'defeat[ing]' the 'claim as a matter of law' [citation] in 'a summary-judgment-like procedure' [citation]." (<i>Olson v. Doe</i> (2022) 12 Cal.5th 669, 679; <i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.) "If the plaintiff fails to meet that burden, the court will strike the claim." (<i>Wilson v. Cable News Network, Inc.</i> (2019) 7 Cal.5th 871, 884.)